

SAUDI ARABIA'S NEW STANDARDS & QUALITY LAW & PRODUCT SAFETY LAW

On July 30, 2024, Saudi Arabia's Council of Ministers approved two pivotal laws the Product Safety Law and the Quality Law. These laws aim to strengthen consumer protection and enhance product standards across the Kingdom, setting a unified framework for product safety and quality, applying to all goods sold in the market, including online sales. Businesses must now adhere to stricter compliance measures, guided by SASO (Saudi Standards, Metrology, and Quality Organization), ensuring safer, and high-quality products for consumers.



Introduction

The Kingdom of Saudi Arabia (KSA) has recently introduced significant legislative reforms aimed at enhancing product safety and quality standards. On July 30, 2024, the Council of Ministers approved two pivotal laws: the **Product Safety Law** and the **Standards and Quality Law**.

These laws represent a significant step forward in the country's efforts to ensure product safety and quality, protect consumer rights, and foster a robust regulatory framework. The scope of both laws extends to the sale of all products including those sold through online channels.



A Unified System for Product Safety & Quality Standards

The primary objective of these laws is to establish a comprehensive and unified system for regulating product safety and quality standards.

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 Saudi Food & Drug Authority



They apply to a wide range of products, including those sold online, with certain exceptions for items

regulated by specialized authorities such as the Saudi Food and Drug Authority (SFDA).



Key Regulator: Saudi Standards, Metrology & Quality Organization (SASO):

SASO, as the primary regulatory authority, plays a pivotal role in implementing and enforcing these new laws. It is tasked with developing national strategies, reviewing standards, and ensuring compliance. Pursuant to the new laws, SASO will establish a dedicated Product Safety and Control Committee to coordinate efforts, develop policies, and propose new regulations and standards.

Furthermore, SASO will appoint inspectors who are empowered to monitor and enforce compliance with the laws and their associated regulations, ensuring

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 Saudi Authority for Intellectual Property



alignment with consumer protection guidelines Saudi Arabia 2024. To ensure that intellectual property rights are protected, SASO will collaborate with the Saudi Authority for Intellectual Property (SAIP) to enforce the laws from the relevant IP law perspectives.



Quality Law: Standards & Provisions

The Standards and Quality Law aims to ensure product quality and safety by establishing a robust framework of standards and guidelines.

The law mandates adherence to quality standards, promotes non-discrimination between local and imported products, and fosters effective coordination and transparency among regulatory authorities.

Key provisions of the law include

- **Guiding Principles for Standardization:**

The law emphasizes the importance of involving relevant stakeholders in the development, adoption, and approval of standards. It prioritizes transparency in these processes and aligns KSA standards with international and regional benchmarks.

- **Public Access and Transparency:**

The law mandates that standards and relevant documents be made accessible to the public, promoting transparency and accountability.

- **Sustainable Development and Trade Facilitation:**

The law supports sustainable development by encouraging resource and energy efficiency, as well as sustainable production and consumption patterns. It also facilitates trade by removing unnecessary technical barriers and improving the quality of products and services.

- **Compliance and Enforcement:**

Non-compliance with the law can result in various penalties, including warnings, fines, or other sanctions as specified in the regulations. Violations related to the use of quality marks issued by SASO may lead to suspension or cancellation of certificates and fines.

In view of obligations under the law, the importers, traders, and merchants must align with these standards and conduct risk assessment requirements for Saudi product laws to avoid penalties and ensure compliance. Consequently, they will have to oblige principals, suppliers, and exporters to provide them with goods as per SASO standards.



Safety Law: Standards and Provisions

The Saudi Arabia Product Safety Law is designed to protect consumer safety by regulating market products and preventing the sale and use of unsafe items. The law imposes obligations on market participants, including manufacturers, authorized representatives, importers, and distributors. These entities are required to ensure product safety, conduct risk assessments, and provide necessary information to consumers.

Key provisions of the law include

- **Responsibilities of Market Stakeholders:**

Market participants are responsible for ensuring product safety, compliance with technical regulations, and conducting risk assessment requirements for Saudi product laws. They must also provide clear and accurate information to consumers.

- **Mandatory Conformity Assessment:**

Products must undergo conformity assessments to verify compliance with technical regulations and safety standards before being placed on the market. Conformity assessment bodies must adhere to the law and maintain professional confidentiality.

- **Penalties and legal Accountability:**

Non-compliance with the law can result in severe penalties, including fines, imprisonment, and closure of establishments. Manufacturers may be held liable for damages caused by defective products.

- **Emphasis on Transparency and Coordination:**

The law emphasizes transparency and coordination among stakeholders to ensure effective implementation and enforcement.

It will be incumbent on traders, retailers, and merchants to ensure that all products sold by them to customers contain thorough information about the product, instructions for use, and potential risks involved in case of misuse. This requirement aligns with consumer protection guidelines Saudi Arabia 2024, making it crucial for businesses to update their agreements with principals, suppliers, and exporters.



Anticipated Implementing Regulations

Within ninety days of the publication of the Product Safety Law and the Standards and Quality Law, implementing regulations (IRs) will be issued to provide detailed guidance on their practical application and enforcement. Until the IRs are released, all entities should familiarize themselves with the provisions of both laws and take necessary steps to ensure compliance.

Conclusion

As the Kingdom of Saudi Arabia continues to modernize and diversify its economy, this implementation of the Saudi Arabia Product Safety Law and the Standards and Quality Law marks a significant milestone in the KSA's commitment to consumer protection and product quality in the market.

On the other hand, by establishing a robust regulatory framework, the KSA aims to create a safer and more reliable market for both domestic and international products which in return enhances reputation and contributes to the overall economic growth of the country. Businesses operating in the KSA should closely monitor the development of implementing regulations and take proactive measures to ensure compliance with the new laws.